

within their commission : the Statute of 3 H. 8 makes their tryall before the justices of the county, where they are taken ; and this being a new felony and made tryable against the common law (which appoint tryals by jurors of the county where the fact is committed) and appoint a special Judge, viz. justices of peace, that is only tryable before them, and not before Commissioners of Oyer and Terminer, who cannot try any thing, but that which is done in the same county : but this, if all be not done in that county where they are taken ; makes it tryable only before the justices of peace of the county where they are taken.

In this point all were not resolved, but required longer time, vide 2 Inst. 56.

SIR RICHARD CHAMPNONS CASE.

A fine of Oct. Purif. where the caption was, Feb. 14, 1.

A writ of covenant is prosecuted, Jan. 23, returnable Oct. Purificat. The dedimus potestatem is tested 23 Jan. the Judge certifie the concord taken Febr. 24, which is two daies after the term, at which time the writ of covenant is not depending, the fine is hæc est finalis concordia facta in Oct. Purif. And after it is recorded in 15 Pasch. and yet adjudged a good fine, vide the Statute of 23 Eliz. 3, Dyer, 220 b. *Carels case*.

MICH. 4 CAR.

JONES *versus* POWELL.

Case for nusans.

[S. C. Palmer, 536. See *Fleming v. Hislop*, 1886, 11 App. Cas. 697.]

John Jones plaintiff against James Powell defendant, in an action upon the case for a nuisance, count, that the plaintiff, 10 August, 1 Caroli, was and is, and for forty years last past, hath been possessed for divers years yet during, of a messuage, in which he and his family did by the time aforesaid dwell : and by all that time hath been register to the Bishop of Gloc. and kept his office there, that the said defendant the tenth day of August, and ever since hath held in possession another house over against the plaintiffs ; and they being so possessed, [136] the defendant the said 10 of Aug. erected a brew-house, and a privy in the said house, and burned sea-coles in the said brew-house, so that by the smoke, stench, and unwholesome vapors coming from the said coles and privy, the plaintiff and his family cannot dwell in the said house without danger of their health. Not guilty pleaded, verdict for the plaintiff. The plaintiff prayeth judgment, and doth offer for authorities in this case.

4 Ass. 3, 4 E. 3, 37, 5 E. 3, 47, New Book of Entries, fol. 19, in 5 Jac. between *Smith and Mopham*, an action upon the case for erecting a tan-fat, with averment of corrupting the air and water, to the annoyance of the plaintiff, and adjudged for the plaintiff after verdict.

Coke, lib. 4, *Aldreds case* pleaded in New Book of Entries, fol. 106, an action of the case for erecting a hogsty, ad nocumentum aeris adjudged.

22 H. 6, 14, by Newton, an action upon the case lyeth expressly.

Trin. 29 Eliz. *Bland* against *Mosely*, an action of the case for stopping lights in London, adjudged a void prescription, to build so high that the neighbors lights are thereby stopped in a city.

Old Book of Entries, fol. 406, in the edition 1596, action upon the case brought for annoying a piscary with a gutter that came from a dye-house, 1.

And there an action brought against a dyer, Quia sumos sceditat & alia sordida juxta parietes querentis posuit, per quod parietes putridæ devenerunt, & ob metum infectionis per horridum vaporem, &c. ibid. morari non audebat.

13 H. 7, 26, an action lieth against a glover, because he with a lime-pit so corrupted the water, that the tenants departed.

F. N. B. 185 b. a writ lieth to the major of a city to cleanse the streets from filth, whereby infection might grow.

By which cases it appeareth, that although sea-cole be a necessary fuell to be used,